

26PR00183 Matter of the Wolfgang Oertel Family Trust

County: santa-barbara

Division: Trust

Department: 2 SM-Cook

Hearing date: 2026-06-02

Motion: Petition to Determine Claim to Property

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Tentative Ruling: Matter of the Wolfgang Oertel Family Trust

Case Number

26PR00183

Case Type

Trust

Hearing Date / Time

Tue, 06/02/2026 - 09:00

Nature of Proceedings

Petition to Determine Claim to Property

Tentative Ruling

Appearances required. The following must be submitted:

Proof of Service of Notice of Hearing (DE-115). Service of Petitions pursuant to section 850 of the Probate Code is governed by section 851, which references CCP section 413.10:

At least 30 days prior to the day of the hearing, the petitioner shall cause notice of the hearing and a copy of the petition to be served in the manner provided in Chapter 4 (commencing with Section 413.10) of Title 5 of Part 2 of the Code of Civil Procedure on all of the following persons where applicable:

(1) The personal representative, conservator, guardian, or trustee as appropriate.

(2) Each person claiming an interest in, or having title to or possession of, the property.

(Prob. Code, § 851(a).) According to that chapter of the CCP, service of the petition must be on the person (CCP, §§413.10; 415.10) the same as a civil summons, with exceptions for mailing and publication as that law provides when the serving party proves the petition “cannot with reasonable diligence be personally delivered to the person to be served...” (CCP, §415.20(b).)

Further, section 851 requires Notices of Petitions pursuant to Probate Code section 850 “shall contain all of the following”:

(1) A description of the subject property sufficient to provide adequate notice to any party who may have an interest in the property. For real property, the notice shall state the street address or, if none, a description of the property’s location and assessor’s parcel number.

(2) If the petition seeks relief pursuant to Section 859, a description of the relief sought sufficient to provide adequate notice to the party against whom that relief is requested.

(3) A statement advising any person interested in the property that he or she may file a response to the petition.

(Prob. Code, § 851(c) [emphasis added].) To ensure this information is in the notice, the Judicial Council created form DE-115 to be used for all petitions pursuant to section 850.

Thus, the proof of service must be submitted using Form DE-115, which became mandatory on January 1, 2020.

Once proper service has been completed, any objecting respondents must file a written objection before the next hearing. The court has authority to require all objectors to file a written objection pursuant CRC, Rule 7.801, or else deem the failure to do so a waiver.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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